Price the Record, Not the Seat

Snot Nose Legal should sell attorneys the same engine it sells families as a **per-record Counsel Review priced by reporter's-record length — $149 under 100 pages, $249 for 100–500 pages, $349 for 501–1,500 pages, and quote-only above 1,500 pages — with a $99 re-run, a prepaid five-record pack at 10% off, and an annual prepaid office licence for public defender appellate divisions at $9,000 for 50 records or $18,000 for 120**, instead of the flat $199 review plus $99 and $249 seats that `professional_tier_expansion.md` proposed. The ladder blends to about **$254 a record on a plausible attorney mix and $238 on the TIDC appointed-appeal mix** [computed], which keeps the family-comparable record (500–1,500 pages, where both reference cases sit) priced *above* the $299 family price and ends the channel-conflict undercut the repository documents concede; every rung clears a 70% gross margin even if the production engine saturates its 32k output cap, and the Extended rung survives the worst engineering tail (a $199 engine cost from cache expiry on a 1,450-page record) that would push a flat $199 price below zero. Four facts drive the shape: the engine's cost and the lawyer's value both scale with record length, and Texas's own indigent-defense regulator already measures appellate work in exactly these page buckets (TIDC Appellate Addendum); seats invert with usage (a $149 seat is loss-making above about five base records a month) while the 2025–26 market reports idle seats, renewal uplifts and legal-specific AI use falling from 58% to 40% (2Civility on Clio 2025); solos spend about 2% of expenses on all software and Texas lawyers rank cost a 10% concern behind citation accuracy at 64% (Clio; SBOT 2026 AI Survey); and a per-record charge is the only unit a Texas lawyer can pass through under Ethics Opinion 705 or obtain under the federal CJA's $1,000 no-prior-authorization ceiling, whereas no county plan reimburses a subscription and two call research tooling non-reimbursable overhead (Texas Bar Blog on Opinion 705; Bexar fee order; D.N.H. CJA FAQ). On a conservative ramp to 25 paid reviews a month and one office licence, the professional line yields **$45k revenue and $28k contribution after channel spend in its first twelve months (low $15k/$1k; high $93k/$70k)** [computed], replacing the stale $32k/$14k in the expansion document — but every one of those figures rests on an engine cost that has never been measured in production on Fable 5.1 with prompt set v2, a QA gate that the deployment blueprint still sets to 100% human review, and a 5,000-page cap the model's context window cannot actually serve.

Executive summary: a record-length ladder, no seats, an office allowance

The recommended offering is one product in three sizes plus an office wrapper. **Counsel Review** runs the seven TRIAL screens (preserved error, ineffective assistance, Brady, junk science, sentencing, voir dire, identification) or the two PLEA screens on one uploaded record and delivers the Part B packet, the counsel priority list and the investigation checklist, with Part A off by default, on existing Stripe Checkout rails (analysis.service.ts; professional_tier_expansion.md §5.1). It is priced by the reporter's-record bucket the TIDC Appellate Addendum uses — under 100 pages, 100–500, 500–1,500, over 1,500 — because that is "one of the few consistently available indicators of difficulty and attorney effort" and "widely used as a caseload metric among appellate defender offices" (Addendum p. 9), and because the engine's own cost moves with tokens, which move with pages (internal unit economics §2).

Unit	Price	Status vs today	Basis
Counsel Review — Short (reporter's record under 100 pages)	**$149**	New rung (was flat $199)	36% of appointed appeals; Delphi record review 3 hours ≈ $375 at Harris's $125 [estimate]
Counsel Review — Standard (100–500 pages)	**$249**	New rung	41% of appointed appeals; 9 Delphi hours ≈ $1,125 at $125; price ≈ 22% of appointed review value, 7.5% at the $368 private median [estimate]
Counsel Review — Extended (501–1,500 pages)	**$349**	New rung; above the $299 family price	22% of appointed appeals; 17 Delphi hours ≈ $2,125 at $125; both reference cases (602 and 1,013 pp) sit here

Unit	Price	Status vs today	Basis
Long record (over 1,500 pages)	**Quote from $499; not sold until a volume-split path ships**	Replaces the $49/2,500-page overage for attorneys	1% of appointed appeals; exceeds the ~1,450-page context ceiling at transcript density [computed]
Re-run with supplemental record	**$99**	Unchanged	payments.service.ts
Five-record prepaid pack (any rung, 12-month validity)	**10% off**	Replaces the Advocate seat in year one	Alexi 10-memo pack saves 13% (reported); SmartDepo volume curve
First review free (≤500 pages, verified Texas bar number, capped monthly via the promo engine)	**$0**	New	LawLM $200 credits, CaseMark $5, SmartDepo first summary free (reported); engine cost ≈ $11–16 each [computed]
Bar-partner code (TCDLA, HCCLA, SBOT sections)	**15% off first paid review**	New	NACDL/JusticeText 15%, MyCase 10% (official NACDL page)
Office 50 — annual prepaid allowance, unlimited users, invoiced	**$9,000** ($180/record)	Replaces Chambers $249/seat	Under the ~$25k county internal tier; over TIDC's $5k minimum
Office 120	**$18,000** ($150/record)	Replaces Chambers	Inside the $17.3k–$50k observed PD AI contract band
Office 250	**$30,000 by quote**	—	Crosses the ~$25k–$50k commissioners-court tier; needs an agenda item
Public defender pilot	**90 days, 15 records, free**, converting on the county's October 1 fiscal year	Replaces "three free pilots, four months"	Cumberland and Minnesota pilot-to-contract precedents (reported)
Public-interest (TIDC-funded innocence projects, 501(c)(3) clinics)	**25 records a year at $0, then Office rates**	Formalises the roadmap's Justice tier	Everlaw for Good "free up to a monthly cap" (official)

Five reasons carry the recommendation. First, the unit of value is the matter: every per-matter precedent in record-heavy legal AI — EvenUp's move to "one clear, predictable cost per case," Supio's per-case invoices "so you can pass through the cost," DISCO's per-GB and Everlaw's credit metering, TypeLaw's per-brief fee — sells the record, not the chair, and the only attorneys who can recover the cost in Texas can do so only per use (EvenUp release; Supio Pricing; Texas Bar Blog on Opinion 705). Second, seats are the one packaging that can lose money here: at the earlier note's $20.77 base record (400k tokens, 1,000 scanned pages) a $149 seat is at 13% margin by six records a month and negative at twelve, and the Advocate design's "one included, additional at $99" is a per-record price wearing a seat's clothes (internal unit economics §5). Third, price by length is price by value and by cost at once: the regulator's Delphi panel allots 3, 9, 17 and 40 hours of record review across the four buckets, and the engine's cost rises from about $6 to $25 across the same range [computed], so a flat price over-charges the plea-record majority and under-charges the 1,000-page trial record where the lawyer's hours and the vendor's risk both concentrate. Fourth, the ladder dissolves the channel conflict instead of arguing it: the record a family brings is a trial record in the 500–1,500 bucket, and that rung is $349, so no attorney buys the family's review cheaper than the family does, while the $149 and $249 rungs apply to records the family tier was never designed around. Fifth, an office allowance invoiced under $25,000 sits below most counties' commissioners-court tier and far below the $100,000 competitive-bid threshold that SB 1173 set on September 1, 2025, fits the $17,300–$50,000 band at which

counties have actually bought JusticeText, and can be framed for a TIDC Improvement Grant as process improvement measured in the Addendum's own hours (SB 1173 analysis; GovTech on Cumberland County; CivicIQ DuPage contract).

What this corrects in the repository. `professional_tier_expansion.md` priced a flat $199 against a $12 LLM line and a 5,000-page cap, assumed five screens with preserved error "not yet running," and modelled 59 Advocate and 15 Chambers seat-months; the engine now runs seven screens on Fable 5.1 at roughly $6–$34 a record depending on length and output volume [computed], the preserved-error screen shipped in prompt set v2 on 2026-09-27, and no Stripe Billing code exists (professional_tier_expansion.md §6.1, §7.1; render.yaml; payments.service.ts). `business_case.md` still carries $54 COGS with $12.50 of human QA and a "456 seats covers three FTE" payroll threshold built on a $130 blended seat ARPU that this report drops (business_case.md §5.1, §5.4, A14–A15). `business_case_12mo.md` says `AUTO_APPROVE=1` "is armed" and QA costs $0; the deployment blueprint sets no such variable and the runbook says to keep it off until counsel signs off, so the attorney margin tables below are shown under both regimes (business_case_12mo.md §0; runbook.md). `market_analysis.md` describes an Ollama/Neo4j architecture and a $50–100M Texas SOM but carries no attorney pricing input; it is superseded on competition by the official list prices read on 2026-10-18 (market_analysis.md). The revised personas report's development plan — per-record first, Record Desk second, offices third, no v3 workspace, TIDC buckets as the size taxonomy, voucherability pitch withdrawn — stands and is the sequencing this pricing attaches to; the one change is that its $199 flat rung becomes the ladder above and its Advocate seat becomes a prepaid pack (appeals_and_writ_attorney_personas.md, Executive summary and Development plan).

The competitive set sells seats and briefs, not Texas records

Read from the vendors' own pages on 2026-10-18, the market has three packaging archetypes and none of them is a priced read of a criminal trial record. The seat archetype dominates drafting and research: Clearbrief is "$300/month per user per month" with enterprise custom and a free tier for law students; Briefpoint is "$150 /month per attorney · billed annually ($1,800/year)" with "no per-case fees"; BriefCatch is $60 a seat (one seat) or $75 (minimum five) with 650–700 monthly AI credits; Paxton is $499 a user a month or $2,999 a year after a card-required 7-day trial; Westlaw Advantage starts at $256.75 a month for single-circuit coverage with 12% and 18% off on two- and three-year terms; CoCounsel Essentials starts at $340.85 a month and CoCounsel Legal at $1,694.90, while Lexis+ Protégé, vLex Vincent, Harvey and Alexi publish no price at all (Clearbrief; Briefpoint Pricing; BriefCatch Pricing; Paxton Pricing; Westlaw Advantage; Compare CoCounsel plans; Lexis+ with Protégé). The per-GB archetype governs record hosting: DISCO bills "on processed data, with no additional charge for unlimited use of Cecilia AI" and "no separate fees for ingest, processing, or users," Everlaw meters Deep Dive and custom extractions in credits with unlimited user licences, and neither publishes a rate (DISCO Platform Pricing; Everlaw Pricing). The per-unit archetype is where this product belongs and it has only human-service and small-software anchors: TypeLaw's "Briefs, Motions, Pleadings … $1895" per document with hosting and hyperlinking of record citations included and "+$995" for same-day rush (the $895 figure in the earlier notes is a stale search extract; the official page now reads $1,895), Rev's human legal transcripts at $2.25–$2.50 a page, MyCase's OCR at "$30" per 5,000 pages, and — reported rather than official — CaseMark's $25 workflow and $50 full-trial summary, LawLM's $49 per deposition with $200 of free credits, Alexi's $299 pay-as-you-go memo and Clearbrief's $300 per-brief cost-recovery option (TypeLaw Pricing; Rev Pricing; MyCase Pricing; CaseMark pricing; Product Hunt, LawLM; LawNext Directory, Alexi; LawNext Directory, Clearbrief).

Vendor (official unless marked)	List price and unit	What it does with a record	Where it falls short for a Texas criminal record
Thomson Reuters CoCounsel Legal / Essentials	From $1,694.90 / $340.85 per month (seat); law-firm store prices rendered client-side	Document review "word-for-word," drafting grounded in Westlaw; "cost-effective pricing" for public defenders, no figure	Research-first seat priced for the $368-an-hour buyer; no Texas preserved-error, 11.07 or TRAP logic; no per-matter unit (CoCounsel for Public Defenders)

Vendor (official unless marked)	List price and unit	What it does with a record	Where it falls short for a Texas criminal record
Westlaw Advantage	From $256.75/month single circuit, $399.75 all-state; 12%/18% multi-year	Quick Check verifies citations and quotations in an uploaded brief	Checks the brief, not the record; the research floor is already free to every Texas lawyer through vLex Fastcase
Lexis+ Protégé	Custom; 2-day trial; bar-member 15% (reported)	Shepard's Verify flags unsupported statements; Vaults of 1–500 documents	Vault size and seat price fit firms, not a 1,000-page single matter; no price for solos published
vLex Vincent	Custom; SBOT bar discount "exclusive discounted rates," value framed at "$995+ annually"	Deposition analysis with page/line cites (reported)	Bar benefit is a discount, not access; no criminal-appellate screens; no per-matter unit
Paxton	$499/user/month or $2,999/year; 7-day card trial; "94% Accuracy on Stanford Hallucination Benchmark"	Drafts "cited from record" for criminal defense	$2,999 a year is most or all of a Texas solo's estimated $2,000–$4,000 annual software line; no record-length awareness
Clearbrief	$300/user/month; enterprise custom; per-brief $300 (reported)	Hyperlinks cites to the record, flags hallucinated cases via LexisNexis	Drafting-stage; a lawyer must already know the issue; no issue-spotting read of the record
Briefpoint / BriefCatch	$150/attorney/month annual; $60–$75/seat/month	Discovery drafting; style and citation checks	Civil discovery and brief polish; nothing reads a reporter's record
Everlaw / DISCO	Per GB and credits (unlimited users), quote only; Everlaw for Good free "up to a monthly cap" for 501(c)(3)s and CJA panel attorneys; DISCO Pro Bono 50 GB free for 501(c)(3)s	Natural-language Q&A over documents with citations	Hosting platforms with minimums and quotes; the free programs exclude county PDOs and for-profit writ practices (Everlaw for Good; DISCO Pro Bono)
JusticeText / Matey	No list price; county contracts $17,300–$175,000 a year (reported board records)	Body-cam and discovery transcription for defenders	Trial-stage evidence, not appellate records; a possible adjacent entrant (Riverside County item)
TypeLaw	$1,895 per brief; $2,895 brief + appendix bundle; rush +$995	Human formatting, record hyperlinking, "100% Quality check by an expert"; pay-only-on-acceptance (reported FAQ)	Formats the brief the lawyer already wrote; the issue-spotting read is upstream of it
CaseMark (reported)	$25 per workflow/summary, $50 full-trial summary, Pro $100/user/month	"Appeal Summary" maps issues to standard of review and tracks preservation with record cites	Generic, not Texas; appeal unit price unconfirmed; summaries, not screened findings (CaseMark Appeal Summary)
LawLM / Alexi (reported)	$49 per deposition + $200 credits; $299 per memo, 10 for $2,599	Evidence model per deposition; research memo	Deposition or research scope; neither reads a multi-volume criminal record
Calendaring (CalendarRules, LawToolBox)	LawToolBox $19–$42/user/month annual; CalendarRules no price	CalendarRules lists TRAP and nine courts of appeals, no Court of Criminal Appeals set	Deadline-only; the TRAP clock is a feature here, not a product (CalendarRules Court List; LawToolBox Pricing)

Two features of this set shape the price. Nothing in it is a per-record read with findings, so the $149–$349 ladder has no direct comparator and must be anchored against substitutes (next section) and against the per-unit band the buyer already accepts, which runs from $25–$50 software summaries to $299–$300 per memo or brief and $1,895 per human-formatted brief. And no vendor publishes an accuracy warranty or money-back guarantee; the verification norm is "grounded, cited, you verify," with Paxton's 94% and vLex's "3.67× more reliability" the only numbers on any page read (vendor pricing official, KQ4). A product that shows the record page behind every finding and refunds when a quotation is not on it would be differentiated at no cost, because the engine already drops any finding whose citation fails re-verification (mvp_v1_prd.md FR-6, FR-7).

The substitute is the lawyer's own hours, worth $375 to $14,700 a record

A Texas appellate lawyer today reads the record personally, and the regulator has priced that reading. TIDC's Appellate Addendum, built from 857 Dallas and Harris public-defender appeals and a twelve-member Delphi panel, allots **3, 9, 17 and 40 hours of record review** for records under 100, 100–500, 500–1,500 and over 1,500 pages, within total Delphi hours of 34.8, 46.4, 69.1 and 100.2 per appeal, and finds that 36%, 41%, 22% and 1% of appointed appeals fall in those buckets (Addendum pp. 9–15). At Harris County's $125 an hour for a non-capital appeal, those review hours are worth $375, $1,125, $2,125 and $5,000; at Travis's $155 they are $465, $1,395, $2,635 and $6,200; at the State Bar's $368 private median they are $1,104, $3,312, $6,256 and $14,720 [estimates computed from the two primary sources] (Harris District fee schedule; Travis fee guidelines; SBOT 2025 rate report). In the capped counties the hours are often unpaid: Collin pays $3,500 flat for an appeal from trial, Dallas's jury-trial range tops out at $3,500, Williamson's $155 hits its $7,500 cap at 48 hours, and a 500–1,500-page record at Delphi hours works out to about $51 an hour in Dallas and Collin [estimate] (Collin District fee schedule; Dallas District fee schedule; Williamson order). Federal panel work is bounded the same way: $175 an hour in 2025 and $177 in 2026 against a non-capital appeal maximum of $9,700 and $9,800 (E.D. Va. 2026 CJA increases).

The paid substitutes are dearer still. Freelance appellate lawyers on LawClerk post flat fees of "$1,500 to $7,500" per brief, and one posted project paid $1,500 to "review my client's record and draft the Appellant's Opening Brief"; LawClerk's own guidance prices such work at "35-40% of the estimated billable value," which puts the issue-spotting read alone at roughly $500–$2,500 [estimate] (LawClerk price list; LawClerk Appellate Projects). A paralegal digest at the illustrative $45 an hour for 40 hours is $1,800, outsourced page-line summaries run $3–$10 a page, and a flat-fee post-conviction case review from a private firm is $5,000–$15,000 after a $400 consultation (Jobbers fee comparison; HowAIWorks deposition summaries; Franklin-Best fees). The record itself costs the county about $6 a page for an original and two copies in Tarrant County's indigent-appeal order, so a 1,000-page record is about $6,000 of public money before anyone reads it, and federal transcripts are $4.40 a page (Tarrant County order; N.D. Tex. transcript rates).

Substitute for one 1,000-page record (500–1,500 bucket)	Cost per record	Source class
Lawyer's own review, 17 Delphi hours at $125 (Harris) / $155 (Travis)	$2,125 / $2,635	estimate from official hours and rates
Same at the $368 private median	$6,256	estimate
Same at CJA $177 (2026)	$3,009	estimate
Freelance appellate read bundled in a $1,500–$7,500 brief fee; read alone at 35–40% guidance	$500–$2,500	official LawClerk list; estimate
Paralegal digest 40 h × $45	$1,800	reported illustration
Outsourced page-line summary $3–$10/page	$3,000–$10,000	reported

Substitute for one 1,000-page record (500–1,500 bucket)	Cost per record	Source class
Private post-conviction written case review	$5,000–$15,000	official firm page
TypeLaw formatting with record hyperlinks (downstream of the read)	$1,895 per brief	official
Counsel Review — Extended	**$349**	recommended

The ladder prices the Standard and Extended rungs at 16–22% of the appointed value of the review hours and 6–8% of the private-median value, inside the band where per-unit legal software already sells, and keeps the Short rung at 40% of its $375 appointed review value — deliberately the weakest rung, because a 60-page plea record is where the engine adds least and where the product should expect low attach outside office allowances.

Buyers can pay, but only per matter and under $25,000 an office

Solo and small-firm budgets are thin and, in Texas, the objection is accuracy rather than price. The average small firm "spends 2% of its expenses on software," 8% of solos have adopted AI "widely or universally," and ABA's 2024 survey found 41–45% of solos budget for technology at all, spending under $3,000 a year on practice-management software (Clio solo/small 2025; ABA 2024 Budgeting TechReport). A Texas solo at the $164,705 median income who follows the 2% norm has on the order of $2,000–$4,000 a year for every subscription combined [estimate], which is why a $300-a-month seat loses to a per-record fee that lives on the matter (SBOT 2025 rate report). The State Bar's 2026 AI survey of 1,553 lawyers ranks "Cost" a concern for 10% (down from 18% in 2024) and "How to bill for use of AI" for 11%, against ethics and misuse 69%, client-information privacy 65% and fictitious cases 64%; criminal law is the only practice area under 50% adoption at 47%, and open responses ask for bar-vetted, non-training tools at "a tiny fraction" of Lexis AI's price (SBOT 2026 AI Survey). The purchase trigger is trust in the channel — 43% of firms bought legal AI because it arrived inside software they already trusted — which argues for the State Bar benefit-vendor roster and TCDLA over price promotion (AffiniPay 2025 report).

Appointed counsel cannot voucher a subscription, and the pitch should not pretend otherwise. Article 26.05(d) limits mandatory reimbursement to "reasonable and necessary expenses, including expenses for investigation and for mental health and other experts," routed through a sealed ex parte request under 26.052(f)–(g) or a post-hoc claim under 26.052(h); El Paso's schedule closes the list to travel, transcripts, exhibits, up to six hours of legal research and "other expenses … only if prior court approval has been obtained," and names "equipment" as non-claimable overhead, while Bexar's June 2025 order calls "computer research" overhead that "may not be additionally claimed" and requires anyone who "assisted the attorney of record" to be named on the voucher (El Paso fee schedule; Bexar fee order). The revised personas report's decision to drop the voucherability pitch is right; the pricing consequence is that a per-record fee must be absorbable inside an hourly fee — $249 is two hours at Harris's $125 — and that in the hourly-uncapped counties the buyer is the office, which gains caseload capacity, not the lawyer, who cannot bill hours AI saved (appeals_and_writ_attorney_personas.md, Decisions table). The one reimbursement door that is open is per-use: Opinion 705 says "reasonable costs associated with the direct use of generative AI services … may be passed onto clients with appropriate prior agreement" while barring bills for hours not worked, so a retained writ practitioner can put a $349 review on the client's invoice with consent, and no seat fraction can be allocated that way (Texas Bar Blog on Opinion 705). Federally the door is wider but still per-matter: CJA panel attorneys may obtain investigative, expert and "other services" without prior authorization up to $1,000 per case (since January 1, 2024), computer-assisted research is reimbursable up to what the manual hours would have cost, and software "not typically found in a law office" needs a CJA 21 provider authorization — every rung of the ladder is under $1,000 and a subscription is not a service (7th Cir. authorization guidance; D.N.H. CJA FAQ; N.D. Tex. CJA slides).

Public defender offices buy on thresholds. SB 1173 raised the County Purchasing Act's competitive-bidding threshold from $50,000 to $100,000 effective September 1, 2025; below it, counties set internal tiers such as Navarro's commissioners-court approval at $25,000–$49,999 and Bexar's department-head authority to $100,000, and Harris keeps its detailed procedures unpublished (SB 1173 analysis; Navarro County purchasing policy; Harris County Purchasing Manual). Observed defender software contracts cluster where the ladder's office tiers sit: Cumberland County, PA at $17,300 a year for JusticeText, DuPage County, IL at up to $50,000 sole-source, Riverside County, CA at $150,000 rising to $175,000 for a large site licence, and research-tool proxies of about $1,300–$1,500 per attorney a year in Ingham County, MI and Warren County, NY (GovTech; CivicIQ; Riverside County, Jul 2026; Ingham Resolution 26-334). TIDC Improvement Grants fund "process improvement projects, including technology" but not routine upgrades, at a $5,000 minimum with a county cash match, multi-year awards on an 80/60/40/20 reimbursement taper and a $50,000 multi-year minimum in the FY2027 request (TIDC FY26 grant training; TIDC Improvement Grants). An Office 50 at $9,000 or Office 120 at $18,000 therefore clears a purchase order in most counties, is grant-eligible if pitched as appellate-backlog process improvement with the Addendum's hours as the metric, and prices a five-lawyer appellate division carrying the Addendum's 31.2 appeals each (about 156 a year) at $115 per appeal for 77% coverage — higher per attorney than a research seat, which the proposal must justify per matter, not per chair [estimate].

The engine costs $6 to $34 a record and the floor is $141 at worst

The repository's cost documents are stale by one model and one prompt set. Production runs `claude-fable-5-1` with prompt set v2 — seven TRIAL screens, two samples, a context pre-pass and a case-summary call, a one-hour cache pre-warm, Message Batches below 400k record tokens and live-sequential calls above — at list rates of $10 per million input tokens, $50 output, $0.25 cache read, $12.50 five-minute cache write and $20 one-hour write, and a measured density of 2.3 characters per token (render.yaml L73–98; analysis.service.ts L102–105, L693–702; analysis-model.ts L34–38, L128–141). No CostRecord for that configuration is checked in; every instrumented dollar figure ($4.66 and $9.42 all-in, $1.75 batch) is Opus 5 on four to six screens, and the eval gate has not been re-run on Fable 5.1 (business_case_12mo.md §5; manual_vs_engine_gary_2026-09-27.md). The table below reconstructs engine cost per record from the code's own formulas at the Brian record's density of about 687 tokens a page, with output per screen call at the measured Fable 5 level of 11.5k ("base"), 6k ("low"), 16k ("high") and the 32k `max_tokens` cap; the earlier note's token-based reconstruction ($9.39 at 150k, $18.02 at 400k, $19.76 at 700k base) is consistent with it (internal unit economics §1; model_comparison_gary.md).

Record bucket	Representative pages	Tokens	Path	Engine low (6k out)	Engine base (11.5k)	Engine high (16k)	Engine cap-bound (32k)
Short (<100 pp)	60	41k	batch	$3.71	**$5.64**	$7.21	$12.81
Standard (100–500 pp)	300	206k	batch	$9.40	**$11.33**	$12.90	$18.50
Standard edge	500	344k	batch	$14.14	$16.07	$17.64	$23.24
Extended (501–1,500 pp)	1,000	687k	live	$15.70	**$19.55**	$22.70	$33.90
Extended ceiling	1,450	996k	live	$20.72	$24.57	$27.72	$38.92
Long (>1,500 pp)	2,000	1.37M	live	— exceeds the usable 1M window —			

All cells [computed]: pre-pass `R×$10/M×1.25 + 300×$10/M + 200×$50/M`; summary `R×$0.25/M + 400×$10/M + 700×$50/M`; batch path adds `R×$20/M` pre-warm plus 14 items at `0.5×(R×$0.25/M + 2,000×$10/M + O×$50/M)`; live path adds 14 calls at full rate. The curve is not monotonic — a 500-page batch record ($16) costs nearly what a 1,000-page live record costs ($20) because the batch path writes the record to cache twice before the 50% discount applies — and the

single largest tail is cache expiry on the live path: screen calls are described in code as "a 15–20 minute call" against a five-minute cache TTL, and if every live call re-wrote the record at $12.50 per million tokens, a 1,450-page record would cost about **$199** in engine spend alone [computed] (analysis.service.ts L768; analysis-model.ts L36–38). OCR is a rounding error at $1.50 per 1,000 Textract pages — $0.45 for a 300-page scan, $1.50 for 1,000 — and attorneys upload clerk PDFs that mostly skip it (render.yaml L99–100; digitize.service.ts). Stripe takes 2.9% plus $0.30 (external_services.md L24). Human QA is the contested line: the market study and original case budget $12.50 a report at 100% review, the professional plan assumes 10% sampling at $1.25, and `render.yaml` sets no `AUTO_APPROVE` key, so the blueprint as committed sends every report to human `QA_REVIEW` until counsel signs off (auto-qa.service.ts L7–11; runbook.md L100–104; business_case.md §5.1). Fixed costs are about $88 a month of provisioned infrastructure, a solo-founder cash floor of about $1,100 with E&O, counsel and a marketing floor, and $3,100 to $7,600 in the staffed scenarios (external_services.md L9–15; business_case_12mo.md §8b–8c).

Contribution at the recommended rungs, with born-digital records, sampled QA at $1.25, Stripe and a 2% refund reserve:

Rung	Price	Engine base	Contribution base / GM	Engine high	Contribution high / GM	Engine cap-bound	Contribution cap / GM	70% floor: base / high / cap
Short	$149	$5.64	**$134.51 / 90%**	$7.21	$132.93 / 89%	$12.81	$127.33 / 85%	$29 / $35 / $57
Standard	$249	$11.33	**$223.92 / 90%**	$12.90	$222.35 / 89%	$18.50	$216.75 / 87%	$51 / $58 / $80
Extended	$349	$19.55	**$310.80 / 89%**	$22.70	$307.65 / 88%	$33.90	$296.45 / 85%	$84 / $97 / $141

Arithmetic [computed]: contribution = P − engine − $1.25 − (0.029P + $0.30) − 0.02P; floor = (engine + $1.25 + $0.30) ÷ (1 − 0.70 − 0.029 − 0.02). With the blueprint's 100% human QA at $12.50 instead, every cell loses $11.25: Short $123.26 (83%), Standard $212.67 (85%), Extended $299.55 (86%), and the floors rise to $73 / $96 / $129 at base and $102 / $125 / $186 cap-bound. The Extended rung is the one that matters for risk: under the cache-expiry tail ($199 engine) it still contributes **$131.79** at $349, whereas the repository's flat $199 would contribute **−$11** on the same record [computed]. Blended over an attorney mix of 25% Short, 45% Standard and 30% Extended the ladder yields a **$254 average price, $12.37 average engine cost and $227.63 contribution (90%)**; over the Addendum's appointed mix (36/41/22/1 with Long at $499) it blends to $237.50 [computed]. Break-even at that contribution is 0.4 records a month against infrastructure, 4.8 against the solo cash floor, 13.6 against lean operations and 33.4 against the staffed $7,600 [computed].

The same cost base shows why the seat and the Chambers office fail and the allowance works. A seat's margin collapses with use because every record costs about $13.60 at the blended base (engine plus sampled QA): a $99 seat is at 55% by three records a month and −69% at twelve; a $149 seat is 69% at three, 41% at six and −13% at twelve; even a $299 seat is 42% at twelve, with an effective price of $25 a record [computed]. The professional plan's own Advocate assumption of 1.2 reviews per $99 seat holds 74% only at its $18 LLM line and only if usage never grows, which is the opposite of what the product wants (professional_tier_expansion.md §7.1). An annual allowance invoiced by ACH carries no card fee and fixes the record count: Office 50 at $9,000 contributes $8,319 (92%) at base, $7,853 (87%) cap-bound and $7,756 (86%) with 100% human QA; Office 120 at $18,000 contributes $16,365 (91%), $15,246 (85%) and $15,015 (83%); an Office 250 at $30,000 is still 81% cap-bound [computed]. The earlier note's $1,500-a-month, 20-record office at an effective $75 a record fell below the $84 base floor; $150–$180 a record restores the margin and still undercuts every per-record rung by 28–40% for an office that commits (internal unit economics §5). A pure usage model — per page or per token — is legible to appellate lawyers because reporter's records are already sold per page, but EvenUp's retreat from per-output to per-case pricing and the engine's non-monotonic cost curve both argue for the bucket presentation rather than a meter (UsagePricing per-case).

The channel-conflict line is $299 per record and 1.0 records a month for any seat. The expansion document set Counsel Review "deliberately below" the family price and justified the $100 gap by human QA, the chargeback reserve and Part A;

in cost terms those are worth about $26 (QA $11.25, 3 points of reserve on $299 ≈ $9, Stripe ≈ $3, Part A rendering ≈ $0) and the remaining $74 was positioning (professional_tier_expansion.md §5.1, §7.1). The ladder resolves it by bucket rather than by discount: the Extended rung at $349 is $50 above the family price for the trial records families actually bring, the Standard rung at $249 is $50 below it for records the family product rarely sees, and the Short rung at $149 is half — a gap defensible because a 60-page record carries two or seven screens of roughly $6 engine cost and no Part A, and because the attorney surfaces live on a separate route the family never sees (professional_tier_expansion.md §6.2). The `business_case_12mo.md` note that a $349 family price test "adds ~$8k/yr" is the cleanest way to remove even that residual: at $349 the family price equals the Extended rung and the ladder becomes a single price list with a family surcharge-free parity (business_case_12mo.md §8). What the ladder does not change is the second conflict — the consumer product selling for $299 what some writ practitioners sell for $3,000 — whose answer remains Opinion 705's: the $3,000 was hours, and the directory routes every strong-signal family report to counsel (professional_tier_expansion.md §5.4).

Packaging: buckets instead of a page cap, packs instead of seats, allowances instead of chairs

The unit is the record, defined at upload. The intake path already meters pages and returns a 402 with the blocks needed when a record crosses the 5,000-page allowance (intake.ts L442–456); for attorney tenants that gate should instead classify the record into its Addendum bucket from the page meter and the TAMES cover-page recognition the personas plan specifies, quote the rung before analysis, and refuse records over 1,500 pages with a quote request until a volume-split code path exists, because the whole record is sent as one cached block and nothing in the analysis path truncates or splits a record above the model's context window (analysis.service.ts L289–296; appeals_and_writ_attorney_personas.md, Phase 1). The $49 per 2,500-page overage block should not be offered to attorneys at all: 2,500 pages is about 1.7 million tokens at transcript density, the block prices pages the engine cannot read, and 99% of appointed appeals are under 1,500 pages anyway (Addendum Table 5-2). Bucket boundaries should be counted in reporter's-record pages with the clerk's record and exhibit volumes included in the meter but reported separately in the record inventory, so that the price the lawyer sees matches the number the county fee schedule and the Addendum use.

Prepaid terms replace the subscription. A five-record pack at 10% off with twelve-month validity gives the writ practitioner who runs one to three records a month the commitment discount the market already offers (Alexi's 10-memo package saves 13%; SmartDepo drops from $75 to $50 a summary at volume) without the idle-seat exposure, and it is deferred revenue the founder can show an investor in place of MRR (LawNext Directory, Alexi; SmartDepo pricing). The Advocate seat is deferred, not killed: if more than about 30% of paying lawyers buy a second review within 90 days and the Record Desk's matter list is live, a $299 seat with one Standard review included and further reviews at pack prices is margin-safe at any plausible usage (83% at three records, 69% at six [computed]) and can be added through Stripe Checkout's subscription mode in the 1.5 engineering-weeks the expansion document estimated (professional_tier_expansion.md §6.1). Annual prepay on the office allowance should be the only term offered — Clio and PracticePanther's 17–20% annual discounts are the norm, but an allowance already embeds the discount in the per-record rate, and a monthly office plan would reintroduce the seat's problem (Capterra PracticePanther).

Pilot and public-interest terms follow the defender playbook. A pilot is 90 days, 15 records, free, with the outcome metric the personas plan specifies — hours from record-filed to brief-filed by Addendum bucket against the 17.2 / 31.4 / 49.5 / 97.3 current-practice baseline — and a conversion ask timed to the county's October 1 fiscal year; the Cumberland and Minnesota pilots converted to a one-year contract and a statewide selection respectively, and practitioner guidance recommends "60–90 day pilot with defined exit criteria and a budget cap" (Addendum Fig. 3-1; Clio Minnesota release; CourtGPT procurement reference). Documenting the pilot's engine cost as an in-kind contribution supports the county's match under TIDC rules. Public-interest access should be formal and capped — 25 records a year at $0 for TIDC-funded innocence projects and 501(c)(3) clinics, then Office rates — mirroring Everlaw for Good's "free of charge up to a monthly cap, with heavily discounted rates for larger matters," and should name CJA panel attorneys as eligible for the per-record

rungs under the $1,000 no-authorization rule rather than for free access (Everlaw for Good). The first-review-free offer should run through the existing promo engine with a monthly cap: at $11–16 of engine cost per Standard review it is the cheapest acquisition available against a $100 consumer CAC ceiling, and it is the only trust mechanism the market offers short of TypeLaw's pay-on-acceptance (business_case_12mo.md §0; TypeLaw FAQ).

The guarantee is a citation guarantee, never an outcome guarantee. No US legal-AI vendor offers a money-back or accuracy warranty; the only precedent is Orbital Witness's insurance-backed accuracy guarantee in UK property law (Legal Futures). The product can promise what its architecture already enforces: every delivered finding carries a record citation whose verbatim excerpt was re-verified against the page at render, and if a delivered quotation is not on the cited page the review is refunded. A "no findings, no fee" promise is wrong for this product because a clean record is a legitimate *Anders* outcome and the promise would imply the tool judges merits. The verification posture should ship in the packet: a per-finding "verified against record" mark; a verification log drafted to proposed TRAP 9.1(d)'s representation that "record citations are not fabricated," labelled "proposed; finalisation pending" until a final order issues; a first-page "Use of Generative Artificial Intelligence" disclosure block in the N.D. Tex. Local Criminal Rule 47.2(e) format and an optional certificate of independent verification in the W.D. Tex. Judge Gonzalez format; and the Fifth Circuit's own warning that "'I used AI' will not be an excuse" quoted on the trust page (Misc. Docket 26-9054; N.D. Tex. Local Criminal Rules; W.D. Tex. Gonzalez standing order; Fifth Circuit decision). The product emits record citations and doctrine categories, never case citations, which is what keeps it on the right side of every sanction the research found.

Twelve months: $45k base revenue, $28k after channel, three scenarios

The scenario below replaces the expansion document's $32,262 revenue and $14,319 contribution, which assumed 114 reviews at $199, 74 seat-months and $10,250 of channel spend (professional_tier_expansion.md §7.2–7.3). Months run from the professional launch (the consumer year's month 4). Paid reviews ramp 2 → 25 a month in the base case (143 in the year, about 8% of monthly new criminal appeals by month 12 against 3,607 a year — the "less comfortable" denominator the personas report flagged), at the blended $254 attorney-mix price; free first reviews run 4–8 a month; three pilot offices consume 15 records each in months 2–4; one Office 50 signs in month 10 (base) and an Office 50 in month 9 plus an Office 120 in month 12 (high); office revenue is shown as cash at signing with the allowance's engine cost booked against it; channel spend is the personas report's Texas channel year — Rusty Duncan booth $1,500, a ten-issue Voice run $3,150, two seminar exhibits, affiliate dues and section dues under $7,000 — plus $1,500 travel and $250 a month of attorney content, $11,500 in all (COA Activity Detail 2025; TCDLA Rusty 2026 Exhibitor Packet). Costs use the blended base engine ($12.37), sampled QA ($1.25), Stripe and a 2% reserve on card sales.

Month	Paid reviews (base)	Free first reviews	Pilot records	Revenue	COGS incl. free and pilot engine	Contribution
1	2	4	0	$508	$103	$405
2	3	6	15	$762	$359	$403
3	4	8	15	$1,016	$410	$606
4	6	8	15	$1,524	$463	$1,061
5	8	8	0	$2,032	$312	$1,720
6	10	8	0	$2,540	$364	$2,176
7	12	6	0	$3,048	$392	$2,656
8	14	6	0	$3,556	$445	$3,111
9	17	6	0	$4,318	$524	$3,794

Month	Paid reviews (base)	Free first reviews	Pilot records	Revenue	COGS incl. free and pilot engine	Contribution
10	20	6	0	$14,080 (incl. Office 50 $9,000)	$1,284	$12,796
11	22	6	0	$5,588	$656	$4,932
12	25	6	0	$6,350	$735	$5,615
Year	**143**	**78**	**45**	**$45,322**	**$6,045**	**$39,277 before channel; $27,777 after $11,500**

Scenario	Paid reviews	Offices	Revenue	COGS	Contribution before channel	After $11,500 channel
Low (40% of base; no conversion)	58	none	$14,732	$2,428	$12,304	**$804**
Base	143	Office 50 at M10	$45,322	$6,045	$39,277	**$27,777**
High (180%; two conversions)	258	Office 50 at M9, Office 120 at M12	$92,532	$11,203	$81,329	**$69,829**
Base with 100% human QA ($12.50)	143	Office 50 at M10	$45,322	$9,600	$35,722	**$24,222**

All rows [computed] from the model in the scratchpad script. Three readings matter. The low case is now roughly break-even on channel rather than the expansion document's −$3,176, because the blended price is $55 higher and a per-record offer carries no seat-month cost, even with a channel line $1,250 above the expansion document's $10,250; the bear-case exposure is the committed seminar spend, as before. The base case's cash contribution lands where the expansion document's did in shape but at twice the magnitude ($27.8k against $14.3k) for 29 more paid records, almost entirely because the blended price is $254 rather than $199 and because the office allowance is prepaid; on a recognised-revenue basis the Office 50 would spread $750 a month across its term and the year-one figure would fall by about $6,750. And the QA regime is worth $3,555 a year at base volume and about $6,600 at high volume (590 engine runs including free, pilot and office records at $11.25 each) — small against the founder's time, large against the solo cash floor, and the reason the `AUTO_APPROVE` decision for attorney tenants belongs on the critical path. Against the staffed $7,600-a-month opex the professional line alone covers 3.7 months; against the solo $1,100 floor it covers the year from month 5 [computed]. The payroll-coverage arithmetic in `business_case.md §5.4` ("456 seats covers 3 FTE") should be retired: at $227.63 blended contribution, two FTE at $345,000 a year need 126 attorney records a month, which is 42% of monthly new criminal appeals and not a plan; the honest statement is the expansion document's own — the professional line buys evidence and a second channel, not a payroll (business_case.md §5.4; professional_tier_expansion.md §7.4).

Risks and the decisions only the founder can make

The channel conflict with the family tier is managed, not removed. The Extended rung above $299 answers the "lawyer pays less than the family" objection for trial records, but the Short and Standard rungs sit below it, the family pages "still describe human review of every report," and the same record can exist in a family tenant and a lawyer's tenant; the engagement terms must address both, and the family-tier disclosure rewrite must land before `/for-counsel` goes live (runbook.md L104; appeals_and_writ_attorney_personas.md, Risks). The unmeasured Fable cost is the largest numeric uncertainty in this report: every engine figure is a reconstruction from list prices and a v1 output measurement, the v2 prompts ask for more fields per finding, and the live path's cache-expiry behaviour is unverified — one production run of Gary and Brian on Fable 5.1 with prompt set v2 and the CostRecord table would replace all of it and is the same run the eval gate needs (analysis.service.ts L99–100, L139). The QA gate is set to human review in the blueprint, which converts

the $1.25 sampled line into $12.50–$25 of founder or hired time per record and, more importantly, puts a 100% human read between a lawyer and a 48-hour target; the attorney tier needs either `AUTO_APPROVE=1` for attorney tenants with FR-7 re-verification still blocking, or a priced SLA that admits the human step (auto-qa.service.ts; professional_tier_expansion.md P6). The 1M-token ceiling against the 5,000-page cap is a product-truth problem as much as an engineering one: the family site sells a cap the engine cannot serve above about 1,450 transcript pages, the attorney ladder should not repeat it, and a split-and-merge path (per volume, with cross-volume de-duplication of findings) is the prerequisite for the Long rung and for the Addendum's >1,500-page bucket, where the Delphi panel put 40 hours of review and the product's value is highest (internal unit economics §5). Seat fatigue is why the seat is deferred: Harvey's own 77% seat utilisation, third-party reports of 30–50% idle seats and 10–25% renewal uplifts, and buyers who "limit the number of licenses they buy" describe a market that keeps paying and uses less; the risk the pack carries instead is breakage, which is revenue, not cost (Claude for Lawyers on Harvey; Bloomberg Law on pricing models). AI court rules are a tailwind with a disclosure cost: the Fifth Circuit declined a rule but sanctioned sixteen fabricated quotations in *Fletcher*, N.D. Tex. now requires a first-page disclosure in criminal filings, E.D. Tex. extended its verification duty to all litigants in December 2025, a W.D. Tex. judge requires a certificate in all cases, and the Supreme Court of Texas's proposed TRAP 9.1(d) names record citations — every one of them rewards a product that shows the page and punishes one that drafts, and the packet must carry the disclosure templates so the lawyer's compliance cost is zero (E.D. Tex. GO 25-07; Judge Starr page). UPL exposure falls with a licensed buyer but survives in three places — the optional Part A client letter, the form-fit and checklist templates that must fill structure rather than choose strategy, and the referral directory, which is lawful only as a neutral list with no matching and no per-referral consideration under Occupations Code chapter 952 — and TRAIGA adds nothing specific to legal services: attorney users are not "consumers" under Sec. 551.001(2), the disclosure duty binds governmental agencies, and only the intent-based prohibitions reach a private vendor (HB 149 enrolled text; mvp_v1_prd.md R-6).

The decisions, in the order they block each other: adopt the record-length ladder in place of the flat $199, or keep $199 and accept a negative-contribution tail on long records; run the Fable 5.1 / v2 production cost and eval re-run before the Extended price is published, since that rung carries the engineering risk; set `AUTO_APPROVE` for attorney tenants (with FR-7 blocking) or price the human step into a slower SLA; decide whether the family price moves to $349 to make the ladder a single list or stays at $299 with the Extended rung $50 above it; refuse or build the >1,500-page split path before any office pilot with Harris or Dallas, whose appellate divisions supplied the Addendum's long-record data; defer the Advocate seat behind a measured second-purchase rate; adopt the professional sub-brand before the first county proposal, because "Snot Nose Legal" on a commissioners-court agenda is the brand risk PRD R-5 named; and invoice offices by ACH on annual terms, which removes the card fee the earlier office model carried (professional_tier_expansion.md §9).

Evidence gaps

No attorney willingness-to-pay or conversion data exists anywhere in the repository or the notes; the $149/$249/$349 rungs are positioned against value and competitor anchors, and the first fifty paid reviews with per-rung conversion are the test (internal unit economics §7). No production CostRecord for Fable 5.1 with prompt set v2 exists, Fable's v2 output tokens per call are unmeasured, and whether a five-minute cache entry is served to a later one-hour request (or a live call re-writes it) is not stated in the code or the API docs. No measured hold rate, QA rejection rate or spot-check finding rate exists to set the sampled-QA line. The record-length distribution of family cases versus attorney cases is unknown, so the 25/45/30 attorney mix and the claim that family records sit in the Extended bucket rest on two reference cases. TIDC's FY2027 match percentages and any technology-specific language could not be confirmed (tidc.texas.gov blocked for the primary RFA), and Harris, Dallas and Travis internal approval tiers below the statutory threshold were not found. Everlaw for Good's monthly cap, whether Thomson Reuters' $50-a-seat legal-aid rate still exists and reaches government defenders, Clio's pricing and court-rules pages, Docket Alarm's coverage and the Harris County JusticeText contract value were all unreadable. The full text of Opinion 705, CJA Guide §§320.60/320.70 and §230.66, and a final order on TRAP 9.1(d) remain unread; the N.D. Tex. disclosure rule's adoption date is not on the pages read. No Texas county plan, order or auditor memo approving a software expense for appointed counsel was found, which is why the report treats the ladder as

overhead rather than a voucherable cost. And no vendor publishes trial-to-paid or pilot-to-contract conversion rates, so the pilot's 90-day, 15-record shape is a norm from practitioner guidance rather than a measured optimum.

Conclusion

The pricing question turns out to be a packaging question, and the packaging question is answered by a 2016 regulator's study rather than by any competitor. Because Texas already measures appellate work in reporter's-record pages, a price that moves with pages reads to the buyer as fair, to the county as familiar, and to the vendor as the only structure that keeps margin on the records where the engine is slowest and the lawyer's hours are longest. The same structure makes the family-tier conflict a matter of arithmetic — the trial record a family brings is priced higher for the lawyer, not lower — and converts the two things investors wanted from seats, commitment and predictability, into prepaid packs and annual allowances that carry no idle-seat risk.

What the evidence cannot yet say is whether Texas appellate and writ lawyers will pay $249–$349 for a read they currently do themselves at an appointed rate that treats their tools as overhead. The cheapest way to find out is already built: a free first review behind a bar number, a promo engine with caps, and a Stripe Checkout that can carry three prices instead of one. The costliest way to be wrong is to publish the Extended rung before the production engine has been run once, on the two records the repository already owns, with the cost meter switched on.